IN THE COURT OF THE HON'BLE DISTRICT JUDGE OF COIMBATORE

H.M.G.O.P. NO. OF 2024

(In the matter of Minors Aarav Nayar and Aanya Nayar)

Mrs.Soumya Radharaman
Rep. by her Power Agent
Mr.C.R.Pankajakshan Nayar - Petitioner

-Vs-

1. Mr.Shyam Mohan Somasekaran
2. Mrs. Prabha Pankajakshan - Respondents

THIRD PARTY AFFIDAVIT

I, Mohammad Ali, S/o Mohamed Ibrahim aged about 73 years residing at 9/27 Kamarajar Street, 1st Cross, K.K. Pudhur, Coimbatore - 38 do hereby solemnly affirm and state as follows:

1. I am the deponent herein and third party to above proceedings.

2. I submit that the petition mentioned property was originally belonged to one Pradeep Nair under Sale deed dated 26.10.1995 registered as Doc No.5227/1995 at SRO, Vadavalli. Whereas, the said Pradeep Nair died intestate on 19.09.2020 by leaving behind his wife the main petitioner herein, mother the second respondent herein and minor children namely Aarav Nayar as his legal heirs to succeed his estates.

3. I submit that now the wife and children of deceased Pradeep Nair are living in abroad and thereby there are unable to maintain the petition mentioned property and also they are in need of money for their education and thereby there are willing to sell it to 1st respondent herein for a sale price of Rs.60,00,000/- which is more than market value and if that property be sold for the said Sale price the minor will get benefited and not only that as the property was at present not maintained due to non-occupation, the value of the property will get deteriorated.

Therefore, I pray that this Hon'ble court may be pleased to pass an order towards sale of said property and pass such other further order.

Solemnly affirm and signed
before me at Coimbatore on 12/6/2024

DEPONENT

ADVOCATE, COIMBATORE.

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